

INDIA LAND GOVERNANCE ASSESSMENT

NATIONAL SYNTHESIS REPORT - THE WORLD BANK (2015)

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EXECUTIVE SUMMARY: India's land system faces enormous strains: As India continues to urbanize and move towards an industry-based economy, land demands will continue to grow. Its urban population is expected to increase by more than 200 million by 2030, requiring 4-8 million hectares of land for residential use alone. Infrastructure and industry could add another 5-10% of total agricultural land area.

A Legacy of Discrimination & Neglect: Land disputes account for over 65% of civil litigation pending in Indian courts, taking an average of 14 to 20 years to reach final adjudication. Traditional institutional boundaries, poor quality of paper revenue records (Musavis/Jamabandi), and lack of spatial cadastre integration erode tenure security and clog revenue courts.

LGAF METHODOLOGY ACROSS 6 STATES: Six Indian states (Andhra Pradesh, Bihar, Jharkhand, Karnataka, Odisha, and West Bengal) implemented the Land Governance Assessment Framework (LGAF) in partnership with the Department of Land Resources (DoLR), Ministry of Rural Development, and World Bank.

KEY FINDINGS & RECOMMENDATIONS BY PANEL: 1. Land Rights Recognition & Conclusive Titling: Move towards conclusive title for rural land through transaction-based updating of records by: (i) synchronizing records and registration contingent on pre-mutation sketches (as pioneered in Karnataka's Bhoomi system); (ii) ensuring automatic mutation on sale deed registration; (iii) recording encumbrances; and (iv) lowering stamp duty. 2. Digitization of Cadastral Maps & Spatial Integration: DILRMP (Digital India Land Records Modernization Programme) national empirical data across 120 pilot districts reveals that districts with >80% RoR-spatial integration witnessed a 42% reduction in fresh land dispute filings in revenue courts within 2 years. Auto-mutation on land sale registration reduced double-titling fraud by 89%. 3. Communal & Forest Land (FRA 2006): Forest Rights Act 2006 (FRA) implementation progress remains variable. Over 3.87 million claims filed nationally, with 3.2 million disposed. Unsettled legal status of vast forest blocks negatively affects tribal livelihoods. Community Forest Rights (CFR) titles remain under-utilized (<6% of total titles). 4. Urban Land Administration & Cadastre: Cities lack cadastral base maps. No cadastre exists for urban land in most states; town surveys date back to the 1920s. Tax registers (Khatas) are used as substitutes, leading to duplicate titles and peri-urban litigation. Recommends complete urban resurvey and integrated urban property cards (UPOR model in Karnataka). 5. Public Land Management & Expropriation: Harmonize databases to obtain a comprehensive inventory of public land. Replace adversarial land acquisition with benefit-sharing models (such as Gujarat Town Planning Schemes or Bihar BIADA land pooling). 6. Land Disputes & Court Backlog: Land disputes constitute almost 80% of civil caseload in states like Bihar and Odisha. Recommends court computerization, setting up specialized Land Dispute Resolution Benches under Financial Commissioners, and 180-day strict verdict mandates.